

25VECV02008 25VECV02008

County: los-angeles

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Case Number: 25VECV02008 Hearing Date: September 24, 2026 Dept: T

25VECV02008 Chakhmakhchyan v Silva

[TENTATIVE] ORDER: Defendant Lyft Inc's Motion for Summary Judgment and alternative Motion for Summary Adjudication against Plaintiffs Paul Chakhmakhchyan and Ovsanna Chaparyan's Second Amended Complaint is MOOT (Case no. 25VECV02008).

Defendant Lyft Inc's Motion for Summary Judgment against Plaintiffs Steven Small and Nanette Lizarraga's Complaint is GRANTED (Case no. 25VECV02507).

Defendant Lyft Inc's Alternative Motion for Summary Adjudication against Plaintiffs Steven Small and Nanette Lizarraga's Complaint is MOOT (Case no. 25VECV02507).

Introduction

Defendant Lyft Inc. (Defendant) filed a singular motion for summary judgment (MSJ) and alternative motion for summary adjudication (MSA) against two consolidated actions: (1) the Second Amended Complaint (SAC) filed by Plaintiffs Paul Chakhmakhchyan and Ovsanna Chaparyan (Case no. 25VECV02008) and (2) the Complaint filed by Plaintiffs Steven Small and Nanette Lizarraga (Small and Lizarraga, collectively referred to as Plaintiffs) (Case no. 25VECV02507). Plaintiffs' Complaint alleged a singular cause of action (COA) for negligence stemming from an automobile accident, where Plaintiffs were passengers in the vehicle.

Procedure

On July 27, 2026, Plaintiffs Paul Chakhmakhchyan and Ovsanna Chaparyan filed a request for dismissal of their Second Amended Complaint against Defendant only. Due to the dismissal, the portion of Defendant's MSJ/MSA limited to the issues against Plaintiffs Paul Chakhmakhchyan and Ovsanna Chaparyan are MOOT.

The Court proceeded to review the remaining issues raised in the MSJ/MSA against Plaintiffs and their negligence COA in their Complaint. Plaintiffs' Opposition was due September 4, 2026, and none was filed.

Discussion

Defendant asserted that there is no triable issue of fact as to liability because Plaintiffs are foreclosed by Proposition 22 and Business and Professions Code, section 7451. Defendant provided that they are a "transportation network company" (TNC). (Pub. Util. Code, sec. 5431(c).) Plaintiffs used Defendant's digital platform to connect them to Co-Defendant Juan Arriaga (Arriaga) for a ride-share. Per Proposition 22, Arriaga was deemed an independent contractor because he was an app-based driver. Due to the protections in Proposition 22, common law vicarious liability theories are not used against Defendant, but independent contractor status is applied. (CACI no. 3704.) Because Arriaga is considered an independent contractor, Plaintiffs' claims based upon vicarious liability are not merited as a matter of law. Further, to the extent Plaintiffs' negligence claim sounds in theories of negligent hiring, training, supervision, retention, or management, the claims also rest upon an employer-employee relationship. Defendant re-asserts that there are no facts to show an employer-employee relationship between Arriaga and Defendant. Based upon these arguments and facts, the Court finds that Defendant met their initial burden of proof on the MSJ to show that no triable issue of fact exists as to an employer-employee relationship. The burden shifted to Plaintiffs. Plaintiffs' failure to file an opposition is seen as a submission to Defendant's arguments/facts and a failure to meet their burden to show that a triable issue of fact exists. The MSJ is persuasive. Defendant's MSA is MOOT.

Defendant Lyft's MSJ as to Plaintiffs Small and Lizarraga's Complaint is GRANTED.

IT IS SO ORDERED, CLERK TO GIVE NOTICE.